

Superior Court of the State of California
County of Orange
TENTATIVE RULINGS FOR C61
HON. JENNIFER M. MCCARTNEY

Date: 5/20/2026

Courtroom Rules and Notices

The Court will continue to upload tentative rulings as they are completed. Please be sure to keep checking until 8:30 AM on the day of your hearing.

Written responses, oppositions, or filings that are filed later than 12:15 PM the day before the hearing on the motion will go on second call by the Court for the Court to have an opportunity to review any last-minute filings. If a party files a written response, opposition, or any filing after 12:15 PM on the day before the hearing, the party must ensure they are available for the court's afternoon calendar the day of the hearing.

Submitting on tentative rulings: If all counsel intend to submit on the tentative ruling and do not desire oral argument, please advise the Courtroom Clerk or Courtroom Attendant by calling (657) 622-5261 – both counsel need to state they are submitting on the tentative. Please do not call the Department unless all parties submit to the tentative ruling. If all sides submit on the tentative ruling and so advise the Court, the tentative ruling shall become the Court's final ruling, and the prevailing party shall give notice of the ruling and prepare an order for the Court's signature if appropriate under Cal. R. Ct. 3.1312.

Non-appearances: If nobody appears for the hearing and the Court has not been notified that all parties submit on the tentative ruling, the Court shall determine whether the matter is taken off calendar or the tentative ruling becomes the final ruling. The Court also might make a different order at the hearing. (*Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442, fn. 1.)

#	Case Name	Tentative
10	30-2026-01556993-CL-UD-CJC Peng vs. Hargrew	As to the Plaintiff and Plaintiff's Counsel's request to appear remotely for the entire case, that is denied by the Court. Plaintiff's Counsel is to appear in person for any evidentiary hearings or court trials, including the motion to quash service, as evidence will be presented. The Plaintiff is to appear in person for the Court Trial and any hearing where the Plaintiff may be a witness. The Court has read and considered the Defendant's Motion to Quash Service (ROA 17) and Plaintiff's Opposition (ROA 24). The Court takes Judicial Notice of the Order to Serve Summons by Posting (ROA 12) and Proof of Service by Posting (ROA 15). Registered Process Server, Katharyne Davis #6490, submitted a Non-Service Report attached to the Application to Serve Summons by Posting, indicating attempted service on four different dates and times with geolocation information attached to the declaration as grounds to request the Court authorizing service through posting and mailing.

		California Evidence Code Section 647 establishes a rebuttable presumption that a proof of service signed by a registered process server is true. It shifts the burden of proving lack of service to the defendant, rather than requiring the plaintiff to prove proper service. On April 17, 2026, the Court authorized service through posting and mailing. The Proof of Service from the posting and mailing shows that service was completed by a layperson, Lynn Paris, not a registered process server. There is no rebuttable presumption as to a lay person. Defendant alleges to have doorbell camera evidence showing that attempts at service were not made on the dates/times as indicated in the proof of service. If Defendant has video evidence to rebut the presumption as to the non-service declaration, the Court will consider it. Additionally, as there is no presumption of proof of service (ROA 15), the Plaintiff must produce the person who provided service at the hearing. Additionally, as indicated by the Clerk's Rejection Notice (ROA 16), Plaintiff's Request for Default Judgment was premature when filed on 5/12/2026. Plaintiff and Defendant must provide evidence of service or lack of service at the hearing on 5/20/2026 at 8:30 AM. Defendant is to have a device in which to play a door camera video at the Court hearing.
11	30-2026-01554359-CL-UD-CJC Korth Family Limited Partnership vs. Zarate	The Court has read and considered the Plaintiff's Motions to Deem Request for Admissions, Set One, Admitted (ROA 28). IT IS ORDERED that the Plaintiff's Motion to Deem Admitted the Facts Set Forth In Plaintiff's First Set of Request for Admissions be and hereby is granted, and that the truth of all specified matters, and the genuineness of all specified documents, in the First Set of Requests for Admissions, propounded by Plaintiff and served on Defendants, be deemed admitted. The Court orders the Defendants, Karen Zarate and Jose Zarate, forthwith to pay a sanction in the amount of \$997.50 to the Plaintiff's counsel. This sum shall be made payable to "Kimball, Tirey, & St. John, LLP" within 5 business days, and shall be delivered to 2040 Main Street, Suite 500, Irvine, CA 92614. The Plaintiff is ordered to provide notice of this Court's order.
12	30-2026-01556541-CL-UD-CJC Western National Securities vs. Noble	The Court has read and considered the Plaintiff's Motions to Deem Request for Admissions, Set One, Admitted (ROA 41). IT IS ORDERED that the Plaintiff's Motion to Deem Admitted the Facts Set Forth In Plaintiff's First Set of Request for Admissions be and hereby is granted, and that the truth of all specified matters, and the genuineness of all specified documents, in the First Set of Requests for Admissions, propounded by Plaintiff and served on Defendant, be deemed admitted. The Court orders the Defendant, Brezanna E. Noble, forthwith to pay a sanction in the amount of \$997.50 to the Plaintiff's counsel. This sum shall be

		made payable to "Kimball, Tirey, & St. John, LLP" within 5 business days, and shall be delivered to 2040 Main Street, Suite 500, Irvine, CA 92614. The Plaintiff is ordered to provide notice of this Court's order.
13	30-2026-01553263-CL-UD-CJC 9 MacArthur Place Property, LLC vs. Poursarvitehrani	The Court has read and considered the Plaintiff's Motion for Summary Judgment and supporting declarations (ROA 23). The Plaintiff provided documentation that the Defendant, Amin Poursarvitehrani, entered into a Lease Agreement on 9/12/2025 for the premises located at 9 MacArthur Place #2202, Santa Ana, CA 92707 at a monthly rental rate of \$6,759. Paragraph 34 of the Lease Agreement entitles the prevailing party to reasonable attorneys' fees not to exceed a total of \$50,000. Defendant was served with a Notice to Pay Rent or Quit, posted on 1/12/2026, for past-due rent of \$13,518. On May 1, 2026, the Court granted the Plaintiff's Motion to Deem Admitted the Facts Set Forth In Plaintiff's First Set of Request for Admissions and that the truth of all specified matters, and the genuineness of all specified documents, in the First Set of Requests for Admissions, propounded by Plaintiff and served on Defendant, be deemed admitted. After reviewing all of the evidence presented, the Court finds that there is no defense to the action and the Defendant has presented no triable issue of material facts, and judgment for the Plaintiff is warranted as a matter of law. The Court GRANTS the motion for Summary Judgment. The Court awards possession of the property located at 9 MacArthur Place #2202, Santa Ana, CA 92707, County of Orange, to the Plaintiff. A writ of possession shall issue forthwith. The judgment applies to all known occupants, subtenants, if any, or named claimants. The lease is forfeited. The Court awards a monetary judgment of \$13,518 for past due rent as stated on the Notice to Pay Rent or Quit, \$24,557.70 in holdover damages - fair rental value per day as \$225.30 x 109 days, 2/1/2026 to 5/20/2026, court costs of \$1,231.20, and attorneys' fees of \$2,941 for a total monetary judgment of \$42,247.90. The Plaintiff is ordered to pay the fee at the clerk's office for raising the jurisdiction limit on the case based on the award for damages. The Plaintiff is ordered to submit a UD-110 form consistent with the Court's order today to the Court Clerk. The Plaintiff is ordered to serve notice of entry of judgment on the defendant.
14	30-2026-01564345-CL-UD-CJC Esperanza Apts LLC vs. Redfern	The Court has read and considered the Defendant's Demurrer to the Complaint (ROA 23), Plaintiff's Opposition (ROA 26) and the Complaint (ROA 2). The Court takes Judicial Notice of the 5/6/2026 Minute Order (ROA 21). The Court OVERRULES the Demurrer.

		The Defendant is ordered to file an answer within 5 calendar days. Plaintiff is ordered to serve notice of the Court's ruling.
15	30-2026-01564509-CL-UD-CJC Vietnamese Bhikshu Buddhist Association Temple vs. Nguyen	The Court has read and considered the Defendant's Demurrer to the Complaint (ROA 11), Defendant's Motion to Strike Portions of Complaint (ROA 12), Request for Judicial Notice (ROA 9), Complaint (ROA 2), and Plaintiff's Opposition (ROA 17). The Court takes Judicial Notice under Evidence Code section 452(d) and 453 of Exhibits A, B, and C. The Court GRANTS the Defendant's Motion to Strike as to Item 20(d) Plaintiff's request for reasonable attorneys' fees or any other request requesting attorneys' fees, as there is no written agreement as to attorneys' fees, and there is no statute that is listed which authorizes attorneys' fees. The Court DENIES the Defendant's Motion to Strike as to Item 15 and any request for damages under 1174(b). The Court SUSTAINS the Demurrer. In the Complaint, the Plaintiff states that the Tenant Protection Act of 2019 is not applicable but does not specify which code section the Plaintiff claims an exemption under. The Complaint alleges that the Defendant is a "squatter" in one location, a temporary boarder with an oral agreement to occupy the premises in another location, and that the Notice to Quit indicates a month-to-month rental agreement or expired lease agreement. If the Plaintiff cannot provide the Court with proof of service which shows that the Defendant was properly served with the Notice to Quit by posting and mailing, then the Notice to Quit is defective and cannot be cured. Although Plaintiff says the Notice was posted, posting alone does not comply with the notice requirements under the California Code of Civil Procedure – it must be posted and mailed. Whether the Plaintiff has leave to amend will be determined after the issue of proof of service is resolved at the Court hearing on 5/20/2026 at 8:30 AM.
16	30-2026-01564537-CL-UD-CJC Lim, Saavedra & Associates, LLC vs. Azraie	The Court has read and considered the Defendant's Demurrer to the Complaint (ROA 10) and the Complaint (ROA 2). The Demurrer to the Complaint is SUSTAINED. The attached Three-Day Notice to Pay Rent or Quit to the Complaint fails to identify the method of payment the Defendant should use, address for payment, phone number for the Plaintiff in violation of California Code of Civil Procedure § 1161(2). The Court will note that at the bottom of the Three-Day Notice to Pay Rent or Quit it says "Page 1 of 2" but there is no page 2 of 2 attached to the Complaint. If Plaintiff can provide documentation to the Court that the 2 page of the Notice to Pay Rent or Quit contain the required information under CCP §1161(2) and it was provided to the Defendant when served on April 16, 2026, the Court will allow the Plaintiff leave to amend to attach the documents properly with the Complaint. If the Plaintiff served the Notice to Pay Rent or Quit as it is shown in the Complaint, the Demurrer will be

		sustained without leave to amend as the law does not allow the Plaintiff to amend a defective notice to pay or quit.
17	30-2026-01566031- CL-UD-CJC Fu vs. Pool	The Court has read and considered the Defendant's Demurrer to the Complaint (ROA 17) and the Complaint (ROA 2). The Court OVERRULES the Demurrer. The Defendant is ordered to file an answer within 5 calendar days. Plaintiff is ordered to serve notice of the Court's ruling.